

Atlas One Solutions

South Dakota Employee Handbook

Basic starting point

This is a general employee handbook for South Dakota, provided by Atlas One Solutions as a starting point. It is not legal advice and your employer's own handbook, where one exists, replaces it. Policies change, have counsel review before relying on it.

Employee Handbook

Policies & Procedures

Your Employer

Effective ...

SOUTH DAKOTA EDITION

Important Notice. This handbook is a customizable template provided as a starting point. It is **not legal advice** and does not guarantee compliance with any federal, state, or local law. Employment laws change frequently and vary by jurisdiction and employer size. **Have this handbook reviewed by qualified HR or employment counsel before adoption.**

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Your Employer ... Employee Handbook · Confidential
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Introduction

About This Handbook

*This Employee Handbook is issued by **Your Employer** (referred to throughout as “the Company”). It is effective [Effective Date] and applies to all employees. Questions about any policy may be directed to your Human Resources Department.*

This handbook is designed to acquaint you with the Company and provide information about working conditions, benefits, and policies affecting your employment. You should read, understand, and comply with all provisions of the handbook. It describes many of your responsibilities as an employee and outlines the programs the Company has developed to benefit you.

No handbook can anticipate every circumstance or question. As the Company continues to grow, the need may arise to revise, supplement, or rescind policies, or to adopt new ones. The Company reserves the right to do so at any time, with or without notice, except for its policy of at-will employment. This handbook is not a contract of employment and does not create contractual rights of any kind.

Section 1: Governing Principles of Employment

Welcome Statement

Welcome to the Company. Whether you are beginning your employment or have been with us for some time, we are glad you are part of our team. Our employees provide the service and quality our customers rely on, and your contribution helps us grow and create new opportunities in the years ahead.

Definitions

The term “Company” refers to your employer. The term “employee” refers to a person employed by the Company. The term “Human Resources” refers to the Company’s Human Resources function or the individual designated to perform that role.

Equal Employment Opportunity

The Company is an equal opportunity employer. It guarantees every applicant and employee equal treatment without regard to race (including traits historically associated with race, such as hair texture and protective hairstyles), color, religion, creed, sex (including pregnancy, childbirth, and related medical conditions), sexual orientation, gender identity or expression, national origin, ancestry, citizenship, age, physical or mental disability, medical condition, genetic information, marital status, veteran or military status, or any other characteristic protected by federal, state, or local law.

This policy applies to all terms and conditions of employment, including recruitment, hiring, placement, promotion, transfer, training, compensation, benefits, and separation. Employees with questions or concerns about equal employment opportunity are encouraged to contact Human Resources. The Company prohibits retaliation against anyone who raises a good-faith concern under this policy.

Background Checks & Fair Chance Hiring OPTIONAL

The Company may conduct background checks on applicants and employees where permitted by law and relevant to the position. Any consumer report is obtained only after separate written disclosure and authorization, as required by the Fair Credit Reporting Act.

Consistent with applicable “ban the box” and fair chance laws, the Company does not ask about criminal history on the initial application and does not consider criminal history until after a conditional offer of employment has been made. A criminal record does not automatically disqualify

an applicant. Where a record is considered, the Company performs an individualized assessment of the nature and gravity of the offense, the time that has passed, and the relationship of the offense to the duties of the position.

If the Company intends to take adverse action based in whole or in part on a background report, the applicant or employee will receive advance notice, a copy of the report, a summary of rights, and a reasonable opportunity to respond or provide evidence of rehabilitation before a final decision is made.

Disability & Religious Accommodation

Consistent with the Americans with Disabilities Act and applicable state law, the Company will provide reasonable accommodation to a qualified employee or applicant with a known disability, unless doing so would cause undue hardship. The Company will likewise reasonably accommodate an employee's sincerely held religious beliefs or practices absent undue hardship.

An employee who needs an accommodation should notify Human Resources, preferably in writing. The Company will engage in a good-faith interactive process to identify an effective accommodation. The Company makes the final determination as to which reasonable accommodation, if any, will be provided.

Pregnancy, Childbirth & Related Conditions

The Company provides reasonable accommodations to qualified employees and applicants for known limitations related to pregnancy, childbirth, or related medical conditions, as required by the Pregnant Workers Fairness Act and applicable state law, unless doing so would impose an undue hardship.

Accommodations are determined through an interactive discussion between the employee and your Human Resources Department. Examples may include additional or longer breaks, seating, closer parking, flexible scheduling, temporary reassignment or light duty, limits on lifting, remote work where the job permits, and leave when no other accommodation is effective. An employee will not be required to accept an accommodation without discussion, and will not be forced to take leave if another reasonable accommodation would allow the employee to keep working.

Under the PUMP Act, the Company provides reasonable break time and a private space, other than a bathroom, that is shielded from view and free from intrusion, for an employee to express breast milk for one year after the child's birth. See also the Lactation Accommodation policy.

Retaliation against any employee who requests or uses an accommodation under this policy is prohibited.

Lactation Accommodation

The Company provides reasonable break time and a private space, other than a restroom, for an employee to express breast milk for a nursing child, in accordance with federal and applicable state law. Employees who need this accommodation should contact Human Resources. The Company prohibits retaliation against employees who exercise their rights under this policy.

At-Will Employment

Employment with the Company is at-will. This means that either you or the Company may end the employment relationship at any time, for any reason or no reason, with or without cause or notice, subject to applicable law. No supervisor, manager, or representative of the Company, other than its highest-ranking officer, has authority to alter the at-will relationship or to enter into an agreement for employment for a specified period, and any such agreement must be in writing and signed. Nothing in this handbook limits either party's right to terminate the employment relationship at will.

Anti-Harassment, Discrimination & Retaliation

The Company is committed to a work environment free of harassment, discrimination, and retaliation. It prohibits harassment and discrimination based on any characteristic protected by law, including sexual harassment. Prohibited conduct includes unwelcome advances, requests for favors, slurs, jokes, intimidation, and other verbal, visual, or physical conduct that creates an intimidating, hostile, or offensive work environment.

Any employee who believes they have experienced or witnessed harassment, discrimination, or retaliation should report it promptly to their supervisor or Human Resources. All complaints will be investigated promptly and as confidentially as practical, and appropriate corrective action will be taken. The Company strictly prohibits retaliation against anyone who reports a concern in good faith or participates in an investigation. Employees may also file a charge with the federal Equal Employment Opportunity Commission (EEOC) or the applicable state agency.

Open Door Policy

The Company encourages open, honest communication. If you have a concern about your work, a policy, or a decision, you are encouraged to raise it first with your supervisor. If that is not appropriate or does not resolve the matter, you may take it to the next level of management or to Human Resources. Most concerns can be resolved by discussing them openly.

Whistleblower Protection & Anti-Retaliation

Employees are encouraged and expected to report, in good faith, any conduct they reasonably believe violates a law, regulation, or Company policy, including suspected fraud, theft, falsification of records, unsafe working conditions, discrimination or harassment, wage violations, or environmental

violations. Reports may be made to a supervisor, to your Human Resources Department, or to any member of management.

The Company prohibits retaliation of any kind against an employee who makes a good faith report, who participates in an investigation, who refuses to participate in activity the employee reasonably believes is unlawful, or who exercises any right protected by law. Retaliation includes termination, demotion, discipline, reduction in hours or pay, reassignment, threats, and exclusion.

Nothing in this handbook limits an employee's right to report suspected violations directly to a government agency (including the EEOC, OSHA, the Department of Labor, the NLRB, the SEC, or a state equivalent) or to participate in an agency proceeding. Employees do not need Company permission and are not required to notify the Company first. An employee who believes retaliation has occurred should report it to your Human Resources Department immediately; retaliation is itself a violation of this policy and is subject to discipline up to and including termination.

Respect for Others

The Company values healthy, respectful working relationships. Employees are expected to treat one another, and customers, with courtesy and professionalism. Disrespectful behavior (including spreading rumors, making untruthful or malicious statements about others, or similar conduct) undermines the workplace and may result in discipline, up to and including termination.

Drug- and Alcohol-Free Workplace

To protect the safety and productivity of all employees, the Company maintains a workplace free of illegal drugs and alcohol misuse. The unlawful use, possession, sale, or distribution of illegal drugs, and reporting to work under the influence of alcohol or illegal drugs, are prohibited. Employees taking prescription or over-the-counter medication that may impair job performance or safety must notify their supervisor. Violation of this policy may result in discipline, up to and including termination, consistent with applicable law.

Workplace Violence Prevention

The Company is committed to a safe workplace and does not tolerate threats, threatening behavior, intimidation, or acts of violence by or against employees, customers, or visitors. Weapons are prohibited on Company premises to the extent permitted by law. Any threat or act of violence should be reported immediately to management. Reports made in good faith will not result in retaliation, and all reports will be investigated. Violations may result in discipline, up to and including termination, and referral to law enforcement.

Right to Revise

This handbook contains the Company's current employment policies. Except for the policy of at-will employment, the Company reserves the right to revise, modify, delete, or add to any policy, procedure, work rule, or benefit at any time, with or without notice. Written changes supersede prior policy. No oral statement can alter the provisions of this handbook.

Diversity, Equity & Inclusion OPTIONAL

The Company is committed to a workplace that is diverse, equitable, and inclusive, where every employee is treated with dignity and respect. We value the range of backgrounds and perspectives our employees bring and strive to provide access, opportunity, and advancement for all. Conduct inconsistent with these values may result in discipline.

Section 2: Workplace & Compensation

Employee Classifications

Each employee is classified as full-time, part-time, or temporary/seasonal, and as either exempt or non-exempt under federal and state wage-and-hour law. Non-exempt employees are entitled to overtime and any legally required meal and rest breaks; exempt employees are not eligible for overtime. Benefit eligibility depends on classification. Your classification does not change your at-will status. You will be told your classification at hire and of any later change.

Introductory Period

The beginning of employment is an introductory period during which you and the Company can evaluate whether the position is a good fit. The Company may extend this period at its discretion. Completing the introductory period does not change your at-will status or create any guarantee of continued employment.

Job Duties

Your supervisor will explain your job responsibilities and the standards expected of you. Job duties may change over time, and you may be asked to perform additional or different work as needed. The Company may alter job responsibilities, reassign positions, or add duties at any time, with or without notice.

Personnel Records

The Company maintains a personnel file for each employee. You are responsible for keeping your information current (including address, telephone number, emergency contact, and tax-withholding details) by notifying Human Resources of any change. Accurate records are important for pay, benefits, and reaching you in an emergency.

Employment Eligibility Verification (Form I-9)

Federal law requires the Company to verify the identity and employment authorization of every person hired. Each new employee must complete Section 1 of Form I-9 no later than the first day of work and present acceptable original documentation within three business days of the start date. Employees choose which acceptable documents to present; the Company does not specify or demand particular documents, and does not request more or different documents than the law requires.

Where an employee's employment authorization document carries an expiration date, the Company will reverify authorization on or before the expiration date. The Company does not reverify U.S. passports, Permanent Resident Cards, or List B identity documents. Employees are asked to provide updated documentation in advance to avoid an interruption in work.

The Company complies with the anti-discrimination provisions of the Immigration and Nationality Act. It does not treat employees differently in hiring, verification, or reverification on the basis of citizenship status or national origin, and does not retaliate against an employee for asserting rights under those provisions.

Employment References & Verification

OPTIONAL

All requests for employment verification or references (from lenders, prospective employers, background screening firms, or government agencies) must be directed to your Human Resources Department. Supervisors and coworkers should not respond to reference requests on the Company's behalf.

Unless the employee provides written authorization to release more, the Company confirms only dates of employment, position(s) held, and, where required by law or requested for verification of income, rate of pay. This practice protects both the employee and the Company and ensures that information released is accurate and consistent.

Work Schedules, Meal & Rest Breaks

You will be assigned a work schedule and are expected to begin and end work accordingly. Business needs may require schedule changes. Non-exempt employees must take any meal and rest breaks required by applicable state law; specific requirements are described in the State-Specific Supplement to this handbook. Employees must be fully relieved of duty during unpaid meal periods. If you are ever unable to take a required break, notify your supervisor or Human Resources promptly.

Timekeeping

Non-exempt employees must accurately record all time worked, including the start and end of each shift and of any unpaid meal period, using the Company's timekeeping system. Working "off the clock" is prohibited, and no supervisor may ask you to do so. Falsifying or altering time records is prohibited and may result in discipline, up to and including termination. Report any timekeeping error to your supervisor right away.

Overtime

Non-exempt employees are paid overtime as required by federal and applicable state law, generally one-and-one-half times the regular rate for hours worked over 40 in a workweek. Some states also require daily overtime, where that applies, it is described in the State-Specific Supplement.

Overtime must be authorized in advance by management. Unauthorized overtime will be paid but may result in discipline.

Meal & Rest Periods

Non-exempt employees are provided meal and rest periods in accordance with federal and state law. Where state law requires them, meal periods are generally at least thirty minutes and rest periods at least ten minutes for every four hours worked or major fraction thereof. Specific requirements for your work location appear in the State-Specific Supplement.

Meal periods are unpaid and duty-free. An employee must be fully relieved of all duties and free to leave the work area. An employee who is interrupted, asked to remain on duty, or unable to take a full meal period must report this to a supervisor the same day so the time is paid correctly. Rest periods are paid and count as time worked; they may not be combined with a meal period, used to arrive late or leave early, or accumulated.

Working through a meal or rest period without authorization is not permitted. An employee who does so will be paid for the time and may be subject to discipline for failing to follow this policy.

Travel Time & On-Call Pay OPTIONAL

Ordinary commuting between home and the regular worksite is not compensable. For non-exempt employees, the Company pays for travel time as follows: travel between job sites during the workday is paid; travel to a temporary or distant worksite in excess of the normal commute is paid; and travel that keeps an employee away from home overnight is paid for the hours that fall within the employee's normal working hours, on any day of the week.

An employee who is required to remain on-call and whose freedom of movement is meaningfully restricted (for example, required to remain on premises or to respond within a short window) is paid for that time. An employee who is simply reachable by phone and free to use the time for personal purposes is paid only for time actually spent working, including any minimum call-back pay required by state law.

All travel and on-call time must be recorded on the employee's timesheet. Questions about whether particular time is compensable should be raised with your Human Resources Department before the travel occurs.

Paychecks & Deductions

You will be paid on the Company's regular payroll schedule. Your pay statement itemizes gross earnings and all deductions, including legally required taxes and withholdings. The Company complies with federal and state law regarding wage deductions. If you believe there is an error in your pay report, it to Human Resources or payroll immediately so it can be corrected; the Company prohibits retaliation for raising a good-faith pay concern.

Pay Transparency & Wage Discussions

Employees have the right to inquire about, discuss, and disclose their own wages and the wages of other employees. The Company will not discharge, discipline, or otherwise retaliate against an employee for doing so, and no policy, agreement, or instruction from a supervisor may be interpreted to prohibit such discussions. Employees whose regular job duties give them access to compensation information may not disclose that information without authorization, except as permitted by law.

Where required by state or local law, the Company discloses the pay scale or wage range for a position in the job posting, on request from an applicant, and on request from a current employee for the employee's own position. The Company does not ask applicants about salary history where that inquiry is prohibited by law, and does not rely on salary history to set pay.

Pay decisions are based on job-related factors including experience, skill, education, certifications, performance, geography, and market data. Any employee who believes a pay decision was made on a basis prohibited by law should raise it with your Human Resources Department.

Payroll Errors & Improper Deduction Safe Harbor OPTIONAL

The Company intends to pay every employee accurately and on time, and to comply with the salary basis requirements for exempt employees. Improper deductions from an exempt employee's salary are prohibited.

An employee who believes a paycheck is incorrect (whether an underpayment, an overpayment, an unauthorized deduction, or missing hours) should report it to your Human Resources Department immediately. The Company will investigate promptly, and any improper deduction or underpayment confirmed will be reimbursed on the next regular payroll or sooner where required by law. An employee will not be retaliated against for reporting a suspected payroll error.

Where an overpayment has occurred, the Company will notify the employee, explain the amount and cause, and arrange repayment on terms consistent with applicable law. Deductions to recover an overpayment are made only with the employee's written authorization where such authorization is required.

Direct Deposit OPTIONAL

Employees are encouraged to use direct deposit. Authorization forms are available from Human Resources. Where required by state law, direct deposit is offered as an option rather than a condition of employment.

Wage Garnishments & Support Orders OPTIONAL

The Company is required by law to honor valid garnishment orders, child support withholding orders, tax levies, and similar legal process. When such an order is received, the Company will notify the affected employee, provide a copy of the order where permitted, and begin withholding on the schedule the order requires.

The Company withholds only the amount the order and applicable law allow, applies the limits of the Consumer Credit Protection Act and any stricter state limit, and will not disclose the existence of an order to coworkers. An employee will not be discharged because wages are garnished for any one indebtedness. Questions about the underlying debt must be directed to the issuing court or agency; the Company cannot modify, delay, or contest the order on an employee's behalf.

Expense Reimbursement

The Company reimburses employees for reasonable, necessary, and pre-approved business expenses incurred in performing their jobs, consistent with applicable law and Company procedure. Submit required receipts and an expense form promptly. Employees should obtain approval before incurring a significant business expense, and should contact their supervisor with any questions about reimbursement.

Business Travel OPTIONAL

Business travel must be approved in advance by the employee's supervisor. Employees are expected to book the most economical option that reasonably meets the business need and to use any Company-designated booking process or preferred vendors.

The Company reimburses reasonable and necessary travel expenses, including transportation, lodging, checked baggage, ground transportation, parking, tolls, business calls, and meals within Company limits. Personal entertainment, in-room movies, spouse or companion travel, traffic and parking fines, and upgrades not approved in advance are not reimbursable. Alcohol is reimbursable only where the Company has expressly approved it as part of a client meal.

Receipts are required for all expenses at or above the threshold set by your Human Resources Department. Expense reports must be submitted within thirty days of the completion of travel. Where an employee uses a personal vehicle for approved business travel, mileage is reimbursed at the current IRS standard rate; the employee must maintain valid insurance and a valid license.

Attendance & Punctuality OPTIONAL

Regular attendance and punctuality are essential. If you will be late or absent, notify your supervisor as early as possible in accordance with Company call-in procedures. Excessive absenteeism or tardiness, or failure to notify the Company, may result in discipline up to and including termination. Absences protected by law will be handled in accordance with the applicable leave policy.

Inclement Weather & Emergency Closures OPTIONAL

The Company remains open during normal business hours unless a closure is announced. A decision to close, delay opening, or release employees early is made by management and communicated by your Human Resources Department through the Company's designated notification method. Employees should not assume a closure based on school or government announcements.

When the Company closes for all or part of a scheduled workday, exempt employees are paid their full salary for that week. Non-exempt employees are paid for hours actually worked and may use available paid time off to cover the remainder, unless state law provides otherwise or reporting-time pay is required. Employees who are able to work remotely may be asked to do so.

No employee is expected to travel in conditions the employee reasonably believes to be unsafe. An employee who cannot safely report to work on a day the Company is open should notify a supervisor as early as possible and may use available paid time off. Employees designated as essential personnel will be notified in advance of that designation.

Section 3: Benefits & Time Off

Benefits Overview

The Company offers a range of benefits to eligible employees. This handbook summarizes them in general terms only. The specific terms, eligibility, and conditions of each benefit plan are governed by the official plan documents and insurance contracts, which control in the event of any difference with this handbook. The Company may change, add, or discontinue benefits at any time consistent with applicable law and plan terms.

When You Can Enroll OPTIONAL

There are three times you can enroll in or change your benefits.

When you are first eligible. New employees may enroll during the initial enrollment window described in your offer or benefits summary. If you do not enroll during that window, you must wait for open enrollment unless you have a qualifying life event.

Open enrollment. Once a year the Company holds an open enrollment period. This is the one time you can add, drop or change coverage for any reason. Elections made during open enrollment take effect on the first day of the new plan year and generally cannot be changed until the following year.

A qualifying life event. Certain life changes let you change coverage mid-year, see the next section. You generally have **30 days** from the event to make the change, and the Company may require documentation.

If you take no action during open enrollment, your current elections may carry forward or may default to no coverage, depending on the plan. Read the enrollment materials each year; do not assume.

Qualifying Life Events OPTIONAL

A qualifying life event lets you change your benefit elections outside of open enrollment. The change you make must be consistent with the event.

Common qualifying events include marriage, divorce or legal separation; the birth, adoption or placement for adoption of a child; the death of a spouse or dependent; a dependent gaining or losing eligibility, including a child reaching the plan's age limit; you or your spouse gaining or losing other coverage, including through a change in employment status or a reduction in hours; a change in residence that affects plan availability; and certain court orders or changes in Medicare or Medicaid eligibility.

You have 30 days from the date of the event to notify your Human Resources Department and complete the change, 60 days for events involving Medicaid or CHIP eligibility. Miss the window and you wait until open enrollment. Documentation such as a marriage certificate, birth certificate or a letter showing loss of prior coverage is generally required.

Health & Insurance Benefits

Eligible employees may participate in the Company's health and related insurance benefits, subject to the terms of the applicable plans. Human Resources can provide summary plan descriptions and enrollment information. Continuation of coverage after certain qualifying events may be available under COBRA or applicable state continuation law.

Understanding Your Benefits: Plain English OPTIONAL

Benefits paperwork is full of terms that are rarely explained. Here is what they actually mean.

Premium, what the coverage costs each pay period, whether or not you use it. Your share is deducted from your paycheck.

Deductible, what you pay out of pocket each plan year before the plan starts paying its share. A \$2,000 deductible means the first \$2,000 of covered care is yours.

Copay, a flat amount for a specific service, such as \$30 to see a doctor. Copays often apply before you meet the deductible.

Coinsurance (after the deductible, the percentage you keep paying. "80/20" means the plan pays 80% and you pay 20%.

Out-of-pocket maximum) the most you can pay in a plan year. Once you reach it, the plan pays 100% of covered in-network care. This is the number that protects you from a catastrophe.

In-network, providers who agreed to discounted rates. Going out of network costs dramatically more, and sometimes is not covered at all. Check before you book.

HSA and FSA, accounts that let you pay medical costs with pre-tax dollars. An HSA requires a high-deductible plan, the money is yours permanently and it rolls over. An FSA does not require a specific plan, but is largely use-it-or-lose-it within the plan year.

How to Enroll OPTIONAL

Enrollment is completed through the process your Human Resources Department provides, usually an online portal, sometimes paper forms. Whichever it is, the steps are the same.

Before you start, gather the legal names, dates of birth and Social Security numbers of everyone you intend to cover, plus documentation of any qualifying event. Missing dependent information is the most common reason an enrollment stalls.

Review every plan offered, not just the cheapest premium. A low premium with a high deductible can cost more overall if you expect regular care; a higher premium can be the better value if you have ongoing prescriptions or a planned procedure.

Check that your providers are in network before you choose. Confirm on the carrier's site, not by memory.

Name your beneficiaries on life and retirement plans, and keep them current. This is the step people skip and the one that causes the most trouble later.

Submit before the deadline and keep the confirmation. An enrollment that was started but never submitted does not count. If you do not receive confirmation, contact your Human Resources Department before the window closes, not after.

Continuation of Health Coverage (COBRA) OPTIONAL

When Company-sponsored group health coverage would otherwise end because of a qualifying event, an employee and covered dependents may have the right to continue that coverage for a limited period at their own expense under COBRA or a comparable state continuation law.

Qualifying events include termination of employment for reasons other than gross misconduct, a reduction in hours below the eligibility threshold, divorce or legal separation, a dependent child aging out of the plan, and the death of the employee. The Company will provide an election notice through the plan administrator following a qualifying event. The employee or dependent is responsible for notifying your Human Resources Department within sixty days of a divorce, legal separation, or a child ceasing to be eligible.

Continuation coverage is identical to the coverage in place before the qualifying event, and the individual pays the full premium plus any permitted administrative fee. Election and payment deadlines are strict; missing them ends the right to continue coverage. Complete details are in the plan's Summary Plan Description, which controls in the event of any conflict with this summary.

Wellness Program OPTIONAL

The Company may offer a voluntary wellness program designed to support employee health. Participation may include activities such as a health assessment, biometric screening, preventive care visits, fitness or nutrition challenges, or educational sessions, and may carry an incentive such as a premium differential or a contribution to a health account.

Participation is entirely voluntary. An employee who chooses not to participate will not be denied health coverage, will not be subject to any adverse employment action, and will be offered a reasonable alternative to earn any incentive where a medical condition makes the standard activity unreasonably difficult or medically inadvisable.

Individual health information collected through the program is confidential. It is provided to the Company only in aggregate form that does not identify any employee, except as necessary to administer the program and as permitted by the ADA, GINA, and HIPAA.

Retirement / 401(k) OPTIONAL

The Company may offer a retirement savings plan to eligible employees. Details regarding eligibility, contributions, and any Company match are described in the official plan documents, available from Human Resources.

Tuition Assistance & Professional Development OPTIONAL

The Company may reimburse the cost of coursework, certifications, licenses, and continuing education that is directly related to an employee's current role or a reasonable career path within the Company. Assistance must be approved in writing by the employee's supervisor and your Human Resources Department before enrollment.

Reimbursement is subject to an annual maximum set by the Company and to satisfactory completion, typically a grade of C or better, or a passing result on a certification exam. Eligible expenses generally include tuition, required fees, exam fees, and required books; they generally exclude travel, parking, optional materials, and late fees. Reimbursement is made after proof of completion and payment is submitted.

Where the Company has advanced or reimbursed more than the amount excludable under Section 127 of the Internal Revenue Code, the excess may be treated as taxable wages. The Company may require an employee who voluntarily resigns within twelve months of reimbursement to repay a prorated portion, where a written repayment agreement was signed in advance and such an agreement is enforceable under state law.

Holidays OPTIONAL

The Company observes a schedule of paid holidays for eligible employees. The current holiday schedule is provided separately and may be updated from time to time. Eligibility and pay for holidays depend on your classification and Company policy.

Vacation / Paid Time Off OPTIONAL

Eligible employees accrue vacation or paid time off (PTO) under the Company's policy and applicable law. Requests should be submitted in advance and are subject to supervisor approval and business needs. Where state law governs the treatment of accrued, unused time at separation, the Company follows that law.

Paid Time Off Donation & Leave Sharing OPTIONAL

The Company may permit employees to donate accrued paid time off to a coworker who has exhausted their own accrued time and is facing a qualifying medical emergency, a serious illness of the employee or a family member, or a federally declared disaster.

Donations are voluntary and confidential. A donating employee submits a written request to your Human Resources Department specifying the number of hours; donations are irrevocable once transferred and may be capped to ensure the donor retains a reasonable reserve. Donated time is converted to the recipient's rate of pay and is paid as ordinary wages subject to withholding.

No employee will be pressured to donate, and no supervisor may solicit donations from direct reports. The Company reviews each request individually and may decline where the circumstances do not meet the criteria or where the program's tax treatment would be jeopardized.

Paid Sick Leave

Where required by state or local law, the Company provides paid sick leave to eligible employees. The specific accrual, caps, and permitted uses that apply to your location are described in the State-Specific Supplement to this handbook. The Company prohibits retaliation against employees for lawfully using protected sick leave.

State Paid Family & Medical Leave OPTIONAL

A number of states operate paid family and medical leave insurance programs funded by employee and, in some states, employer contributions. Where the Company's employees work in such a state, the Company withholds and remits the required contributions and posts the state's required notice. The specific program, contribution rate, benefit amount, and duration for your work location appear in the State-Specific Supplement.

These programs generally provide partial wage replacement for an employee's own serious health condition, for bonding with a new child by birth, adoption, or foster placement, to care for a family member with a serious health condition, and for certain military family needs. Some states also cover leave related to domestic violence or to organ donation.

Paid family and medical leave benefits are paid by the state, not by the Company, and are separate from job-protected leave. Where the reason for leave also qualifies under the FMLA or a state leave law, the leaves run concurrently. Employees should apply directly to the state agency and notify your Human Resources Department as far in advance as practicable so that the leave, benefit coordination, and continuation of health coverage can be arranged.

Workers' Compensation

The Company carries workers' compensation insurance as required by law to cover employees who suffer a work-related injury or illness. Report any work-related injury or illness to your supervisor immediately, no matter how minor, so that a timely claim can be filed. It is unlawful, and against Company policy, to retaliate against an employee for filing a good-faith workers' compensation claim.

Section 4: Leaves of Absence

Family & Medical Leave

If the Company is covered by the federal Family and Medical Leave Act (FMLA), eligible employees may take unpaid, job-protected leave for qualifying family and medical reasons, including the birth or placement of a child, a serious health condition of the employee or a family member, and certain military-family needs. Many states also provide family or medical leave rights that may be broader than federal law; those are described in the State-Specific Supplement. Contact Human Resources to request leave and for details on eligibility and coordination with other benefits.

Military Leave (USERRA)

The Company grants military leave and reemployment rights in accordance with the Uniformed Services Employment and Reemployment Rights Act (USERRA) and applicable state law. Employees who need leave for military service should notify Human Resources as far in advance as possible. The Company does not discriminate or retaliate against employees because of their military service or obligations.

Domestic Violence, Sexual Assault & Crime Victim Leave OPTIONAL

An employee who is a victim of domestic violence, sexual assault, stalking, or another crime, or whose family member is a victim, may take leave to obtain medical care or counseling, seek a restraining or protective order, attend court or law enforcement proceedings, relocate, or take other steps to ensure safety. The length of leave, whether it is paid, and which family relationships qualify vary by state; the requirements for your work location appear in the State-Specific Supplement.

An employee should give as much notice as is practicable. Where advance notice is not possible, certification may be provided afterward, for example a police report, a court record, or documentation from a health care provider, counselor, or victim services organization. The Company will accept an employee's written statement where a state permits it.

All information related to a request under this policy is kept confidential and disclosed only as required by law or as necessary to protect the safety of the employee or others. The Company will also consider reasonable safety accommodations, such as a schedule change, a transfer, a new work telephone number, or changes to a worksite entrance. Retaliation against an employee for requesting or taking leave under this policy is prohibited.

Volunteer Emergency Responder Leave OPTIONAL

An employee who serves as a volunteer firefighter, emergency medical responder, reserve peace officer, or member of a civil air patrol or search and rescue team may be granted unpaid leave to respond to an emergency call or to attend required training, to the extent required by applicable state law.

The employee must notify the Company of the volunteer role at hire or upon accepting it, and must notify a supervisor as soon as practicable when responding to a call. The Company may request written verification from the responding agency of the date and hours of service. Leave is unpaid unless state law provides otherwise or the employee elects to use available paid time off.

An employee will not be disciplined, discharged, or retaliated against for taking leave under this policy. An employee is expected to report for the remainder of a scheduled shift where the emergency ends and it is safe and practicable to do so.

Jury Duty & Witness Leave OPTIONAL

The Company grants time off for jury duty and to respond to a lawful subpoena as required by law. Notify your supervisor promptly when you receive a summons. Whether such leave is paid is determined by Company policy and applicable state law. The Company will not penalize an employee for serving.

School Activities & Parental Involvement Leave OPTIONAL

A number of states require employers to allow a parent, guardian, or grandparent with custody to take leave to participate in a child's school or licensed child care activities, parent-teacher conferences, classroom volunteering, school performances, disciplinary or special education meetings, and, in some states, to respond to a school emergency. Where such a law applies to your work location, the annual entitlement and any notice requirement appear in the State-Specific Supplement.

Leave under this policy is generally unpaid, and an employee may elect to use available paid time off. The employee should give the supervisor as much advance notice as practicable, and the Company may request documentation from the school or provider confirming attendance.

Where more than one parent of the same child works for the Company, the entitlement may be shared as state law provides. The Company will not discipline or retaliate against an employee for taking leave under this policy.

Bereavement Leave OPTIONAL

The Company provides bereavement leave to eligible employees following the death of a family member, in accordance with Company policy and any applicable state law. Contact your supervisor or Human Resources to arrange leave.

Organ & Bone Marrow Donation Leave OPTIONAL

An employee who donates an organ or bone marrow may take leave for the donation procedure and recovery. Several states require a specified amount of paid leave for this purpose, commonly up to thirty days for organ donation and five days for bone marrow donation in a twelve-month period. The entitlement for your work location appears in the State-Specific Supplement.

The employee should request leave in advance and provide written verification from a physician that the employee is a donor and that there is a medical necessity for the donation. Leave under this policy runs concurrently with FMLA leave where the employee is FMLA-eligible and the absence qualifies.

Group health coverage continues during the leave on the same terms as if the employee were working. The employee is restored to the same or an equivalent position on return, and no adverse employment action will be taken because of the donation.

Voting Leave OPTIONAL

The Company supports employees' right to vote. Where required by state law, the Company provides time off to vote. If you believe you will not have sufficient time to vote outside working hours, notify your supervisor in advance so arrangements can be made.

Personal Leave of Absence OPTIONAL

In limited circumstances, the Company may grant an unpaid personal leave of absence at its discretion, based on business needs and the reason for the request. Personal leave is not a protected leave and approval is not guaranteed. Contact Human Resources for details.

Section 5: Standards of Conduct

Standards of Conduct

To protect the interests of all employees and the Company, certain standards of conduct are necessary. Conduct that may result in discipline, up to and including termination, includes but is not limited to: dishonesty, theft, insubordination, violation of safety rules, harassment or discrimination, unauthorized use of Company property, falsification of records, being under the influence of drugs or alcohol at work, excessive absenteeism, and violation of Company policy. This list is illustrative, not exhaustive. Because employment is at-will, the Company may discipline or terminate for any lawful reason.

Protected Rights: Savings Clause

Nothing in this handbook is intended to interfere with, restrain, or prevent employees from exercising rights protected by Section 7 of the National Labor Relations Act, and no policy in this handbook will be interpreted or applied in a way that does so.

Employees have the right to engage in protected concerted activity, to organize, to form, join, or assist a labor organization, to bargain collectively through representatives of their own choosing, and to act together with other employees for mutual aid or protection regarding wages, hours, and other terms and conditions of employment. Employees also have the right to refrain from any of these activities.

Accordingly, no provision of this handbook (including the policies on conduct, confidentiality, technology, social media, solicitation, recording, media contact, or complaint procedures) prohibits employees from discussing wages, benefits, working conditions, safety, or terms of employment with each other, with a union, with the news media, or with a government agency; from raising work-related concerns publicly or on social media; from wearing or displaying union insignia where otherwise permitted; or from participating in a Board proceeding or investigation.

If any part of this handbook conflicts with rights protected by the Act or by any other federal, state, or local law, this savings clause controls and the conflicting part will not be enforced.

Confidentiality

During employment you may have access to confidential and proprietary information about the Company, its customers, and its employees. You must keep such information confidential and use it only for legitimate business purposes, both during and after your employment. Nothing in this policy limits your right to discuss wages, hours, or other terms and conditions of employment or to engage in other legally protected activity.

Employee Data Privacy OPTIONAL

The Company collects and maintains personal information about employees as necessary to administer employment, including identification and contact details, government identifiers, compensation and tax data, benefits elections, emergency contacts, time and attendance records, and performance documentation.

This information is used only for legitimate business and legal purposes: payroll and tax reporting, benefits administration, workers' compensation, safety, compliance with legal obligations, and management of the employment relationship. Access is limited to those with a business need. The Company does not sell employee personal information, and shares it with third parties (such as payroll providers, insurers, and benefit administrators) only as required to deliver those services, under agreements that limit further use.

The Company retains employee records for the periods required by law and disposes of them securely. Employees in states with employee privacy statutes have additional rights, including the right to know what categories of information are collected and the right to request correction or deletion where the law permits; those rights and how to exercise them appear in the State-Specific Supplement. Direct any question or request to your Human Resources Department.

Conflicts of Interest OPTIONAL

Employees are expected to act in the best interests of the Company and to avoid situations that create an actual or apparent conflict between their personal interests and those of the Company. Disclose any potential conflict of interest to your supervisor or Human Resources so it can be reviewed.

Outside Employment OPTIONAL

Employees may hold outside employment or operate a business of their own, provided it does not interfere with their duties here. An employee is expected to disclose outside employment to their supervisor and your Human Resources Department so that any conflict can be identified early.

Outside employment is not permitted where it competes with the Company, uses Company time, equipment, supplies, facilities, or confidential information, involves soliciting Company customers or employees, creates a safety risk through fatigue or excessive hours, or impairs the employee's ability to meet performance and attendance standards. Employees may not perform outside work during scheduled working hours.

Nothing in this policy restricts activity protected by law, including protected concerted activity or lawful off-duty conduct where state law protects it. If outside employment begins to interfere with job performance, the employee will be asked to address the conflict, and continued interference may result in discipline.

Gifts, Gratuities & Business Entertainment OPTIONAL

Business decisions must be made on the merits. Employees may not solicit gifts, and may not accept any gift, gratuity, discount, loan, service, or entertainment from a customer, vendor, or competitor that could reasonably be seen to influence a business decision.

Modest courtesies of nominal value (promotional items, an occasional business meal, refreshments at a vendor event) are acceptable. Cash and cash equivalents, including gift cards, may never be accepted in any amount. Any gift exceeding a nominal value must be reported to your Human Resources Department and may be returned, donated, or shared with the workgroup.

Employees involved in selecting vendors, negotiating contracts, or approving payments are held to a stricter standard and should decline entertainment from bidders during an active selection. Offering anything of value to a government official, or to any person to obtain an improper business advantage, is prohibited without exception.

Company Property

Company property (including equipment, tools, vehicles, devices, and materials) must be used properly, maintained with care, and used only for authorized business purposes. Employees must return all Company property upon separation. The Company reserves the right, to the extent permitted by law, to inspect Company property and premises.

Workplace Searches OPTIONAL

To protect the safety of employees and the security of Company and customer property, the Company reserves the right to inspect Company property at any time, with or without notice. Company property includes desks, lockers, cabinets, vehicles, tool cribs, work areas, and Company-issued computers, phones, and storage.

Employees should have no expectation of privacy in Company property. Where an employee is permitted to use a personal lock, a duplicate key or combination must be provided to your Human Resources Department. Personal belongings brought onto Company premises may be inspected where the Company has a reasonable, articulable basis for doing so and where state law permits.

Searches are conducted respectfully, and where practicable in the presence of the employee and a witness. Refusal to cooperate with a lawful search may result in discipline. This policy is not applied on a discriminatory basis and will not be used to interfere with protected activity.

Visitors in the Workplace OPTIONAL

All visitors must report to the designated reception point, sign in, and be escorted by an employee while on the premises. Employees are responsible for their visitors and for ensuring that visitors observe safety rules, wear any required personal protective equipment, and stay out of restricted

areas.

Personal visits should be brief and infrequent so that work is not disrupted. Children and family members may not be brought to the worksite in place of child care, and are not permitted in production, warehouse, shop, laboratory, or any other area where a hazard exists. Pets are not permitted, except for a service animal accompanying a person with a disability.

Any visitor who behaves inappropriately, refuses to follow safety rules, or has no legitimate business purpose will be asked to leave. Report any unescorted or unfamiliar person to a supervisor immediately.

Company Vehicles & Driving OPTIONAL

An employee who drives a Company vehicle, or a personal vehicle for Company business, must hold a valid driver's license and, where a personal vehicle is used, maintain the insurance coverage required by state law. The employee must notify your Human Resources Department immediately if the license is suspended, revoked, or restricted. The Company may review driving records at hire and periodically thereafter where permitted by law.

Company vehicles are for business use. Drivers must obey all traffic laws, wear seat belts, secure loads, complete any required pre-trip inspection, and report mechanical problems promptly. Operating a vehicle while under the influence of alcohol, cannabis, illegal drugs, or any substance that impairs driving is strictly prohibited. Traffic and parking citations are the responsibility of the driver.

Any accident involving a Company vehicle or occurring while on Company business must be reported to a supervisor immediately, regardless of severity or fault, and the driver must remain at the scene, contact law enforcement, and complete the Company's accident report. Drivers subject to DOT regulation must also comply with all applicable federal motor carrier requirements, including hours of service and drug and alcohol testing.

Electronic Communications & Technology

Company systems, email, internet access, and devices are provided for business purposes. Employees should have no expectation of privacy in their use of Company systems, to the extent permitted by law. Use of Company technology must comply with Company policy and the law. This policy is not intended to interfere with employees' legally protected rights to communicate about the terms and conditions of employment.

Artificial Intelligence & Generative AI Tools OPTIONAL

Generative artificial intelligence tools can improve the speed and quality of work. They also create real risk when confidential information is entered into them or when their output is used without review. This policy sets the rules for using them here.

Approved tools. Employees may use only AI tools that the Company has approved for business use. A current list is maintained by your Human Resources Department. Using a personal AI account for Company work, or signing up for a new AI service using a Company email address, requires approval in advance.

What may never be entered. Do not input into any AI tool: customer or client data; employee personal information, including Social Security numbers, health information, and compensation data; financial account or payment card data; trade secrets, source code, pricing models, or unreleased plans; anything covered by a nondisclosure agreement; or anything the Company treats as confidential under the Confidentiality policy. If you are unsure whether information qualifies, do not enter it and ask first.

Review before use. AI output can be inaccurate, biased, outdated, or fabricated, and can reproduce copyrighted material. The employee who uses AI output is responsible for it. Verify every fact, figure, citation, calculation, and legal or technical statement before the work is sent to a customer, filed, published, or relied on. AI output may not be presented as the work of a licensed professional where a license is required.

Where AI may not be the decision-maker. AI tools may not be used to make or substantially determine decisions about hiring, promotion, discipline, termination, compensation, scheduling, or benefits eligibility without human review and the approval of your Human Resources Department. Several jurisdictions regulate automated employment decision tools, including bias audit and candidate notice requirements.

Disclosure and records. Disclose the use of AI where a customer, regulator, or contract requires it. AI conversations that document business decisions may be Company records subject to the same retention and legal hold obligations as email.

Misuse of AI tools, particularly disclosure of confidential information, may result in discipline up to and including termination. Nothing in this policy restricts an employee's right to discuss wages, hours, or working conditions.

Personal Devices (BYOD) OPTIONAL

Employees who are permitted to use a personal phone, tablet, or computer for Company work must first obtain approval from your Human Resources Department and agree to the conditions of this policy.

A personal device used for Company work must be protected by a passcode or biometric lock, kept current on operating system and security updates, and encrypted where the device supports it. Company data must be stored only in Company-approved applications and cloud services, not in personal accounts, personal cloud storage, or personal messaging apps. Employees may not disable Company security software or jailbreak or root a device used for work.

Company data on a personal device remains Company property. On separation, or if a device is lost or stolen, the Company may remotely remove Company data and, where that is not technically possible, may require the employee to surrender the device for that purpose. The Company does not monitor personal content, photos, or personal communications on a personal device, and will limit any access to Company data.

A non-exempt employee may not perform work on a personal device outside scheduled hours without advance approval, and must record all such time. The Company reimburses a reasonable portion of the cost of a personal device or service plan used for work where required by state law.

Cell Phone Use & Distracted Driving OPTIONAL

Personal phone use during working time should be limited and should not interfere with work or safety. Phones must be silenced in meetings and are not permitted in areas where they create a hazard or where customer privacy requires it.

Employees may not text, email, browse, or use a handheld phone while driving on Company business or while operating a Company vehicle, forklift, or other equipment. This applies regardless of what state law permits. If a call must be taken, pull over and stop safely first, or use a hands-free system where lawful and only when conditions allow. No business call, message, or deadline justifies unsafe driving, and no employee will be disciplined for delaying a response until it is safe to reply.

Employees who receive a citation for distracted driving while on Company business are responsible for the citation and may be subject to discipline.

Social Media OPTIONAL

When using social media, employees are personally responsible for what they post. Do not disclose the Company's confidential information or post anything unlawful, harassing, or that a reasonable person would view as malicious. This policy does not restrict employees' legally protected right to discuss wages, hours, or working conditions.

Recording & Photography in the Workplace OPTIONAL

To protect customer privacy, confidential information, and proprietary processes, employees should not photograph, film, or audio record customers, customer information, confidential documents, or restricted production areas without permission from a supervisor.

This policy does not prohibit and will not be applied to prohibit employees from photographing or recording in connection with activity protected by Section 7 of the National Labor Relations Act, including documenting unsafe working conditions, health and safety hazards, discriminatory or harassing conduct, wage and hour issues, or other terms and conditions of employment, or recording concerted activity. See the Protected Rights: Savings Clause.

Employees remain responsible for complying with state recording laws, several of which require the consent of all parties to record a conversation, and with any customer site rules that are stricter than this policy.

Dress & Appearance OPTIONAL

Employees are expected to present a clean, neat, and professional appearance appropriate to their role and to maintain workplace safety standards. The Company will reasonably accommodate dress and grooming practices related to religion, disability, or other protected characteristics as required by law.

Workplace Safety

Safety is everyone's responsibility. Employees must follow all safety rules, use required protective equipment, and report unsafe conditions, injuries, and near-misses promptly. The Company complies with the federal Occupational Safety and Health Act and, where applicable, an OSHA-approved state plan; the applicable authority for your location is noted in the State-Specific Supplement. Retaliation against an employee for raising a good-faith safety concern is prohibited.

Heat Illness Prevention OPTIONAL

Employees who work outdoors or in high-heat indoor environments are at risk of heat illness, which can escalate from cramps and exhaustion to heat stroke, a medical emergency. The Company provides access to cool drinking water, shade or a cool-down area, and rest breaks whenever an employee feels the need to prevent overheating.

Employees are encouraged to drink water frequently throughout the shift rather than waiting until thirsty, to use cool-down rest as needed, and to report symptoms in themselves or a coworker immediately, heavy sweating that stops, hot dry skin, confusion, slurred speech, dizziness, nausea, or fainting. No employee will be disciplined for taking a preventive cool-down rest or for reporting symptoms.

New employees and employees returning from an absence are acclimatized gradually over their first days of work in high heat, and are observed closely during that period. Supervisors monitor conditions, adjust work and rest schedules on high-heat days, and ensure emergency response procedures are known at every worksite, including a clear description of how to direct emergency services to the location.

Corrective Action OPTIONAL

The Company may address performance or conduct concerns through corrective action, which may include coaching, verbal or written warnings, suspension, or termination. The Company may use any of these steps, in any order, or none, depending on the circumstances. Nothing in this policy alters

the at-will employment relationship, and the Company may terminate employment at any time for any lawful reason.

Solicitation & Distribution OPTIONAL

To avoid disruption, employees may not solicit or distribute literature during working time (the time either party is supposed to be working), and non-employees may not solicit or distribute on Company premises. This policy is applied consistently and is not intended to interfere with employees' legally protected rights.

Remote Work OPTIONAL

Where the Company permits remote work, it is a privilege granted at the Company's discretion based on role and business needs, not an entitlement. Remote employees must maintain productivity, protect confidential information, remain reachable during working hours, accurately record time if non-exempt, and comply with all Company policies. The Company may modify or end a remote-work arrangement at any time.

State-Specific Supplement ... South Dakota

State Law Application STATE

This handbook is intended for the Company's operations in **South Dakota**. Where South Dakota law provides employees greater rights or benefits than federal law, South Dakota law controls. Where this handbook and applicable law conflict, the law controls, and the remainder of the handbook stays in effect.

Wages & Overtime STATE

Non-exempt employees are paid overtime at one-and-one-half times their regular rate for hours worked over 40 in a workweek, in accordance with the federal Fair Labor Standards Act and South Dakota law. South Dakota sets its own minimum wage, which may exceed the federal minimum; the Company pays at least the highest applicable rate.

Meal & Rest Breaks STATE

South Dakota does not impose a general statewide meal or rest break mandate for adult private-sector employees; the Company provides breaks consistent with federal law and operational needs. Nonexempt employees are relieved of duty during any unpaid meal period.

Final Pay & Pay Frequency STATE

South Dakota sets rules for how often employees must be paid and how quickly final wages are due after a separation (these deadlines often differ for a discharge versus a resignation). The Company follows the South Dakota deadlines in effect. **Confirm current figures with counsel or your state labor department before adoption.**

State Fair Employment Agency STATE

In addition to the federal EEOC, employees in South Dakota may have rights under state anti-discrimination law and may contact the South Dakota state fair-employment/civil-rights agency. State law may cover additional protected characteristics and may apply to smaller employers than federal law. **Confirm current figures with counsel or your state labor department before adoption.**

Acknowledgment

Employee Acknowledgment

I acknowledge that I have received a copy of the Your Employer Employee Handbook. I understand it is my responsibility to read, understand, and comply with the policies it contains, and to ask your Human Resources Department about anything I do not understand.

I understand that this handbook is a general guide, that it is not a contract of employment, and that the Company may revise its policies at any time, except for the policy of at-will employment. I understand that my employment is at-will, meaning that either I or the Company may end the employment relationship at any time, with or without cause or notice, subject to applicable law.

Employee signature

Date

Employee name (print)

Employee ID (if applicable)